

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

July 14, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Vasquez vs. Diab 26-01550147	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint Defendant Debt Resolution Direct, LLC's ("DRD") demurrer to all five causes of action in Plaintiff Allison Vasquez's ("Plaintiff") Complaint is SUSTAINED with 20 days leave to amend. The sole allegation specific to DRD in the Complaint states "Defendant Debt Resolution Direct, LLC ("DRD") is a related business entity affiliated with BAT and controlled by Defendant Diab." (Compl. ¶ 5.) Paragraph 7 of the Complaint generally alleges that "[e]ach Defendant acted as the agent, servant, employee, partner, joint venturer, or alter ego of the others, and in doing the acts alleged herein, acted within the course and scope of such agency and with the consent of their co-defendants." (Compl. ¶ 5.) Based on these conclusory allegations, Plaintiff lumps

	DRD in with all “Defendants” in its claims for breach of promissory note, unjust enrichment, unfair business practices, fraud and conversion. “The ‘single enterprise,’ or alter ego, doctrine is an equitable doctrine: ‘A corporate identity may be disregarded—the “corporate veil” pierced—where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. [Citation.] Under the alter ego doctrine, then, when the corporate form is used to perpetuate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation’s acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. [Citations.] . . .’ [Citation.]” (Troyk v. Farmers Group, Inc. (2009) 171 Cal.App.4th 1305, 1341.) “The alter ego doctrine traditionally is applied to pierce the corporate veil so that a shareholder may be held liable for the debts or conduct of the corporation. Some courts recognize the corporate veil may be pierced in reverse so that a corporation may be held liable for the debts or conduct of a shareholder. . . A variant of the reverse piercing theory, sometimes called ‘outside’ or ‘third party’ reverse piercing, occurs when a third party outsider seeks to reach corporate assets to satisfy claims against an individual shareholder.” (Postal Instant Press, Inc. v. Kaswa Corp. (2008) 162 Cal.App.4th 1510, 1518.) Here, the Complaint appears to attempt to plead liability against DRD based on an outside reverse piercing theory. However, the case cited by Plaintiff to support application of outside reverse piercing of the corporate veil expressly rejected the doctrine. (Id. at 1518-19 (“We agree with the sound reasoning and analysis of the cases rejecting outside reverse piercing of the corporate veil.”).)
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		Even if the Court were to apply that doctrine, Plaintiff has not pled any facts to establish either a unity of interest or an equitable justification for imposition of the doctrine in this case. Further, Plaintiff has not pled any facts to support an agency, partner, joint venture or other theory of liability against DRD. While DRD is mentioned in Exhibit A to the Complaint, that reference, without further allegations from Plaintiff, does nothing to describe a theory of liability against DRD. Plaintiff's requests for judicial notice are denied as immaterial to the disposition of this demurrer. Motion to Strike In light of this Court's ruling on DRD's demurrer, the motion to strike is DENIED as MOOT. DRD to give notice.
102	Guillen vs. KWK Trucking Inc 25-01535710	1. Demurrer to Answer 2. Case Management Conference Plaintiff Victor Guillen's demurrer to Defendant KWK Trucking, Inc.'s Answer is SUSTAINED in part with leave to amend and OVERRULED in part. Plaintiff argues that many of the affirmative defenses in the Answer fail for lack of sufficient facts because they are pled in a conclusory manner. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) “ ‘The phrase “new matter” refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as “new matter.” ’ ” (Quantification Settlement Agreement Cases (2011))